BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **BEST BUY CO., INC., a Minnesota corporation, d/b/a BEST BUY; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF** (1) ICRAA, Civ. Code § 1786.40; (2) CCRAA, Civ. Code § 1785.20.5; (3) UCL, B&P Code § 17200; (4) Penal Code § 290.46(j) *[Unlimited Civil]* *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") alleges as follows:

I.

INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), for the unauthorized employment use of California Megan's Law registry information. On October 13, 2023, Plaintiff applied to Best Buy for General Warehouse Worker / 2nd Shift at $22.60, requisition 928556BR. On October 17, 2023, Best Buy offered him that job at its warehouse at 6653 Hopkins Road, Tracy, California 95377, required a background check, and through First Advantage ordered a drug test. Plaintiff accepted the offer and completed the drug screening.

On information and belief, that screen came back clean. Thereafter Best Buy ceased communication and ghosted him. That cessation is the adverse employment action: it denied, withdrew, or ended the accepted warehouse job. A written rejection letter is not an element of Civil Code section 1786.40, Civil Code section 1785.20.5, or Penal Code section 290.46(j). Silence after an accepted offer is the decision. No written rejection is in Plaintiff's files.

2. Plaintiff is informed and believes, and on that basis alleges, that Best Buy used information disclosed pursuant to Penal Code section 290.46 — Plaintiff's status as a person required to register under Penal Code section 290, as published on the California Sex Offender Registry — for purposes relating to that employment.

3. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A warehouse hiring, continuation, or revocation-of-offer decision is a purpose relating to employment.

4. Plaintiff does not allege registry use merely because he is registered. The inference rests on concrete facts: (a) Best Buy offered him the warehouse job; (b) Best Buy required a consumer report and investigative consumer report as a condition of that offer; (c) First Advantage was the named screening vendor and ordered the drug test the same afternoon; (d) Plaintiff was then listed on the California Megan's Law website; (e) Best Buy did not, to Plaintiff's knowledge, identify any independent, lawful, job-related basis for undoing the offer; and (f) the screening file is exclusively within Defendants' possession.

5. Plaintiff does not possess the Best Buy First Advantage report and does not allege its contents as a known fact. On information and belief, that report — or the screening process that produced it — contained or was informed of information disclosed pursuant to Penal Code section 290.46 concerning Plaintiff. The report, the order, the adjudication notes, and the

decision-maker communications are in Defendants' possession. Plaintiff will seek them in discovery.

6. Plaintiff does not name Best Buy Stores, L.P., or any other affiliate, as a present defendant merely because warehouse workers are sometimes employed by an operating partnership. He has sued DOES 11 through 15 for the actual employing or decision-making Best Buy entity. He does not name First Advantage Corporation, the publicly traded parent, merely because it owns First Advantage Background Services Corp.

7. This Complaint does not plead a Tameny count, an IIED count, a Fair Credit Reporting Act count, a contract or promissory-estoppel count, or a FEHA or Government Code section 12952 Fair Chance Act count. The Fair Chance reservation is not a count. Plaintiff will timely exhaust California Civil Rights Department rights and seek leave to amend if discovery shows conviction history caused or contributed to the decision after the written offer. He does not presently plead contract or promissory estoppel. He preserves those theories if the written offer and confirmed reliance later support a timely count. He does not invent declined jobs, travel, or hours. The load-bearing claim is Penal Code section 290.46(j). Companion consumer-report and unfair-competition counts are pleaded only to the extent the same employment use, if proven, also violated those statutes. ICRAA and CCRAA are pleaded in the alternative so the notice claim survives whether the First Advantage product was an investigative consumer report or an ordinary consumer credit report. First Advantage is the named screening vendor in Best Buy's own October 17, 2023 emails. Plaintiff does not presently plead Labor Code section 432.7 or section 1198.5. He has not alleged that any report used an arrest that did not result in a conviction, diversion, or a dismissed conviction, and he has not yet served a section 1198.5 inspection request. He preserves leave to amend if the file later supports those reserved theories.

II.

PARTIES

8. Plaintiff BRENDAN NGWA NFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff. The October 17, 2023 First Advantage drug-test order used BRENDAN NGWA NFORBI.

9. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

10. Defendant BEST BUY CO., INC. ('Best Buy') is a corporation organized under the laws of the State of Minnesota, doing business as Best Buy. The October 17, 2023 background-check authorization identifies 'Best Buy and/or its subsidiaries, affiliates other related entities, successors, and/or assigns' as the 'Company,' and directs New York correspondence to Best Buy Co. Inc., ATTN: Employment Screening, 7601 Penn Ave. South, Richfield, MN 55423. The First Advantage drug-test order lists the employer as BEST BUY, same Richfield address. On information and belief, Best Buy Co., Inc. offered Plaintiff the warehouse job and caused the background check and drug test to be ordered.

11. The warehouse job was at 6653 Hopkins Road, Tracy, California 95377. A Quest Diagnostics collection site in Modesto, California, appears on the drug-test order as one available site. That is a collection option, not the worksite.

12. First Advantage Background Services Corp. ('First Advantage') is a Florida corporation that provides employment background reports and screening services. It is not named as a defendant. Best Buy's October 17, 2023 Minnesota disclosure named First

Advantage Consumer Center, P.O. Box 105292, Atlanta, GA 30348-5292, (800) 845-6004, www.FADV.com. The same afternoon First Advantage Corporation Reporting Service emailed Plaintiff a Best Buy drug-test order, Re:Quest QPassport/Barcode Q09078711, account BEST BUY (11759586), and stated that the employer had been sent a copy. On information and belief, First Advantage was the consumer reporting agency that assembled or was to assemble the Best Buy employment report. Plaintiff will seek its file under Civil Code sections 1786.10 and 1786.22 and, if necessary, by subpoena.

13. On information and belief, Best Buy's designated agent for service of process in California is the agent listed on the California Secretary of State record as of the date of service. Plaintiff will serve Best Buy through that current agent. Service is not to be made at a warehouse or at Jose Tapia's telephone number merely because he signed the offer email.

14. Jose Tapia identified himself as General Manager on the October 17, 2023 offer email and listed 720-539-4284. He is a percipient witness, not presently named as a defendant. Daisy Calvary (daisy.calvary@bestbuy.com) was named as a drug-screen contact. She is likewise a witness.

15. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include any First Advantage furnishing affiliate and the individuals who ordered, reviewed, or acted on the report. DOES 11 through 15 include Best Buy Stores, L.P., or any other Best Buy affiliate that was the actual employing or decision-making entity. Plaintiff will amend when their identities and roles are ascertained.

16. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

III.

JURISDICTION AND VENUE

17. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

18. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest and costs. No specific personal-injury or punitive-damages amount is pleaded.

19. This Court has personal jurisdiction over Best Buy because Best Buy recruited and offered employment to a California resident for work at 6653 Hopkins Road, Tracy, required a California background-check authorization, and caused a drug test to be ordered at California collection sites, including a Modesto option. First Advantage is not named as a defendant.

20. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, the warehouse is in Tracy, he received the application confirmation, the offer, the authorization copy, and the drug-test order here, and the liability and injury arose here.

21. Plaintiff has not pleaded a federal claim. This Complaint is a California statutory action belonging in this Court.

IV.

TIMELINESS

22. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

23. The cause of action accrued, if at all, when Best Buy used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision after the October 17, 2023 offer, not on the application date, and not on the date Plaintiff first registered under section 290.

24. After October 17, 2023, Best Buy ceased communication and ghosted Plaintiff. The file contains no dated rejection. On information and belief, that cessation occurred on or after October 17, 2023, and in any event within three years before the filing of this Complaint. Three years from October 17, 2023, is October 17, 2026. This Complaint is prepared for execution on September 8, 2026.

25. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. The actual-damages and discretionary enhancement authorized by section 290.46(j)(4)(A) are a liability created by statute, not an action upon a statute for a penalty. The labeled civil-penalty slice is pleaded in the alternative and is not the sole theory. He does not plead a Tameny or personal-injury count. A two-year clock from an October 2023 decision would have closed in October 2025. He has not pleaded the Fair Credit Reporting Act.

25A. Civil Code section 1786.52 requires that an ICRAA action be brought within two

years from the date the plaintiff knew or should have known of the violation. Plaintiff received no Civil Code section 1786.40 advice and no copy of any Best Buy report. He could not discover from a notice he never received that an investigative consumer report had been obtained and used. He knew in October 2023 that Best Buy had required a background authorization and that communication then stopped. He did not then know that an investigative consumer report had actually been obtained. The face of this Complaint does not establish a discovery date that bars the ICRAA count. If Defendants interpose section 1786.52, the date is a fact to be proven.

25B. The Unfair Competition Law claim is timely under Business and Professions Code section 17208's four-year period. That period is independent of any shorter period that may apply to a borrowed predicate. The UCL count is not pleaded to resurrect a time-barred statutory right.

V.

COMMON FACTUAL ALLEGATIONS

A. The Application and the Offer

26. On Friday, October 13, 2023, at 7:29 a.m., Best Buy Human Resources emailed Plaintiff that it had received his submission for General Warehouse Worker / 2nd Shift at $22.60, requisition 928556BR. The email described the work as loading, unloading, and processing merchandise, moving product inside a distribution center, and using forklifts and other powered equipment, with a basic qualification of lifting up to 75 pounds.

27. On Tuesday, October 17, 2023, at 3:47 p.m., Best Buy emailed 'Congratulations! Please Review Your Job Offer from Best Buy!' The body stated: 'Congratulations on receiving an offer for General Warehouse Worker/2nd Shift @ $22.60 from Best Buy!' It required, within

24 hours: (1) review and sign the offer paperwork in the Candidate Zone using brennforbi@gmail.com; (2) provide additional information used to complete the background check; and (3) review and agree to the required background-check terms. The sender block was Jose Tapia, General Manager, 720-539-4284. Attached files were named DISCLOSURE REGARDING BACKGROUND CHECKS.pdf and CALIFORNIA STATE LAW DISCLOSURE.pdf.

28. Plaintiff accepted the offer. The Candidate Zone acceptance audit and the two attached disclosure PDFs are not in Plaintiff's present files. Their absence from those files does not negate the acceptance.

B. The Background Authorization and the Drug Test

29. On October 17, 2023, at 4:22 p.m., Best Buy emailed a Background Authorization Consent Confirmation to brennforbi@gmail.com. The confirmation recites that Plaintiff consented to Best Buy procuring consumer reports, which may include criminal background checks and investigative consumer reports as defined by California law, from a CRA or ICRA, and that the authorization would remain valid throughout employment.

30. That confirmation includes a Minnesota disclosure naming First Advantage Consumer Center as the place to request a complete and accurate disclosure of the nature and scope of any consumer report, and a New York disclosure directing written requests to Best Buy Co. Inc., Employment Screening, 7601 Penn Ave. South, Richfield, MN 55423.

31. Eight minutes later, at 4:30 p.m., First Advantage Corporation Reporting Service emailed 'First Advantage Corporation: BRENDAN NGWA NFORBI Best Buy Drug Test.' The order registration was Q09078711, request date October 17, 2023, 7:29 p.m. It stated: 'You are required to complete a drug test as a condition of your offer of employment from Best Buy,' and

that the employer had been sent a copy. The account was BEST BUY (11759586). A listed collection site was Quest Diagnostics-Modesto, 1008 6th Street Ste C, Modesto, CA 95354.

32. At 5:31 p.m., Best Buy Human Resources emailed a 'Best Buy Drug Screen: Reminder' stating: 'Congratulations on accepting your offer with Best Buy!' and that the drug screen had been successfully ordered, with instructions pointing to the First Advantage email. The reminder's 'accepting your offer' sentence is Best Buy's characterization; Plaintiff independently accepted the offer and completed the drug screening. On information and belief, that screen came back clean.

33. Plaintiff does not allege that a failed drug test was the reason for any later decision. On information and belief, the screen came back clean. A drug-test order is not a Penal Code section 290.46 disclosure.

C. The Employment Decision

34. After Plaintiff accepted the October 17, 2023 offer and completed the drug screening, Best Buy ceased communication and ghosted him. That cessation ended or prevented the warehouse job. Ghosting after an accepted offer is an adverse employment action. A written rejection letter is not required. The file contains no pre-adverse letter, no adverse-action letter, and no explanation.

35. To Plaintiff's knowledge, Best Buy did not tell him that the decision rested on a failed drug screen, a safety incident, a falsified application, a criminal conviction drawn from ordinary court records, or any other independent, lawful, job-related ground. If Best Buy later asserts such a ground, Plaintiff will test it against the contemporaneous file.

36. On information and belief, Best Buy did not advise Plaintiff that an investigative

consumer report had been obtained or supply the name and address of the agency that prepared it, as Civil Code section 1786.40 requires when employment is denied under circumstances in which such a report was obtained. No pre-adverse or adverse package arrived by email, portal, or mail.

D. Facts Supporting the Registry-Use Inference

37. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

38. Best Buy is among the largest consumer-electronics retailers in the United States and operates distribution centers that feed its stores. On information and belief, it maintains written background-screening policies for warehouse associates, contracts with First Advantage, and adjudicates hits through a centralized process rather than by ad hoc decision of a single general manager.

39. On information and belief, the ordinary Best Buy warehouse screen in 2023 included a search, or caused First Advantage to search, sex-offender registry or Department of Justice public-notification sources, including sources that republish or are derived from California Penal Code section 290.46 disclosures.

40. Plaintiff does not attach a Best Buy First Advantage report because he does not have one. The Best Buy report is the document that will confirm or refute registry use. It is exclusively in Defendants' possession.

41. On information and belief, Best Buy or First Advantage obtained, accessed, displayed, scored, or was informed of information disclosed pursuant to Penal Code section

290.46 concerning Plaintiff — including a California Sex Offender Registry listing, a Department of Justice website result, or a derivative national sex-offender compilation whose source of record was the California registry — in connection with the warehouse offer or the later employment decision.

42. On information and belief, Best Buy used that information for purposes relating to employment when it made the decision alleged in paragraph 34. The use was a substantial factor in the decision. First Advantage is not named as a defendant. This count is Best Buy's use, not a vendor's mere retrieval or republication.

43. The basis for paragraphs 41 and 42 is the combination of: the written offer; the same-day background authorization and First Advantage drug-test order; First Advantage's role as Best Buy's named CRA; Plaintiff's contemporaneous presence on the California Megan's Law website; the absence of any other basis communicated to Plaintiff; and Defendants' exclusive control of the Best Buy report.

44. Alternative explanations — a failed drug screen, a no-show at collection, a Candidate Zone non-completion, a lawful criminal-history adjudication under a statute that actually authorizes the use, or a withdrawn requisition — can be tested against a discrete set of records. Plaintiff will seek the Candidate Zone audit, the First Advantage order and report, the drug-test result, adjudication notes, and communications of Tapia and Employment Screening.

45. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count after the employer's report was in the record and showed ordinary court records and a national sex-offender search returning no record. That dismissal turned on the report. This Complaint does not attach the Best Buy First Advantage report. Plaintiff does not allege its contents as a known fact. A court cannot perform a Lerma analysis on the face of a complaint that does not contain the employer's report. Defendants may not

obtain a pleading-stage dismissal by withholding the one document that would confirm or refute the inference. Plaintiff pleads the opposite inference here. If production shows ordinary court records and no California-registry source, this count will stand or fall on that record — after production, not before.

46. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general warehouse assignment is not, without more, the narrow authorization that subdivision (j)(1) describes. Defendants have the burden of proving any other statutory authorization as a defense.

E. Knowledge, Concealment, and Harm

47. Best Buy and First Advantage knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Both are sophisticated national actors. On information and belief, First Advantage's own notices in other matters involving this Plaintiff have recited that registry information may not be used for employment.

48. On information and belief, Defendants did not disclose to Plaintiff that registry information had been obtained or used, and thereby deprived him of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

49. As a result of the decision, Plaintiff lost the General Warehouse Worker / 2nd Shift employment at $22.60 per hour, including the opportunity to earn the wages and benefits of that position, according to proof and subject to mitigation. The offer email does not state weekly hours. Plaintiff also suffered emotional distress, humiliation, and anxiety from an unexplained collapse of a written offer he is informed and believes rested on a status the Legislature has

forbidden employers to use. Weekly hours are not in the offer email. Wages earned, if any, will be proven.

50. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an unsigned or unfinalized warehouse offer. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

F. Inspection Rights, Independent ICRAA Path, and Why a Demurrer Cannot Replicate Lerma

51. Code of Civil Procedure section 425.10 requires a statement of the facts constituting the cause of action in ordinary and concise language. Section 452 requires this Court to construe the pleading liberally with a view to substantial justice between the parties. Facts exclusively in Defendants' possession — the Best Buy First Advantage report, the source-of-record line, the adjudication code, and the decision-maker's reason — are properly pleaded on information and belief. Plaintiff does not attach that report because he does not have it.

52. The section 290.46(j) claim has four elements: (a) information disclosed pursuant to section 290.46; (b) use of that information by a defendant; (c) a purpose relating to employment; and (d) the use was not to protect a person at risk and was not otherwise authorized by law. Plaintiff pleads each element. Elements (a) and (b) are pleaded on information and belief. Elements (c) and (d) follow from the written warehouse offer and the later employment decision. A demurrer tests the pleading, not the unproduced report. Defendants may deny registry use. They may not convert that denial into a Lerma dismissal while the report remains in their possession.

53. The Second Cause of Action under Civil Code sections 1786.40 and 1786.50 is independent of the registry-use inference. Best Buy extended a written offer, named First Advantage, and required a consumer report and investigative consumer report as a condition of that offer. The file contains no Civil Code section 1786.40 advice that an investigative consumer report had been obtained, and no agency name and address supplied at the time of any denial. A notice failure can reach discovery even if the section 290.46(j) count later fails on the contents of the report. Civil Code sections 1786.10 and 1786.22 entitle Plaintiff to inspect and obtain a copy of the information First Advantage maintains on him. Plaintiff has not yet served that inspection request. He will. Those records, together with Best Buy's Candidate Zone and Employment Screening file, are the discrete set that will confirm or refute registry use.

VI.

FIRST CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act
Civil Code sections 1786.40 and 1786.50 — Against Best Buy and User DOES
(Pleaded on Information and Belief)

60. Plaintiff realleges paragraphs 1 through 53 and 57 through 58 to the extent consistent with this cause.

61. On information and belief, First Advantage assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Best Buy's request, and Best Buy was the user of that information before the decision alleged in paragraph 34. Civil Code section 1786.2 defines an investigative consumer report as one in which information on those subjects is obtained. Plaintiff alleges the First Advantage product concerned those subjects. He does not invent personal interviews. If this Court concludes that interviews are required and none occurred, this ICRAA count does not

apply and the CCRAA count does.

62. Civil Code section 1786.40(a) required Best Buy, under circumstances in which employment was denied and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address. On information and belief, Best Buy did not comply. The file contains no such advice. Plaintiff received none.

63. The omission caused incremental harm distinct from the denial itself. Plaintiff could not timely obtain the Best Buy-specific report, test whether its source was the California registry or ordinary court records, or invoke his statutory inspection and dispute rights before the decision became final. Ghosting after an accepted offer is the adverse action. This ICRAA count does not depend on proving Penal Code section 290.46(j). A notice failure under Civil Code section 1786.40 is independently actionable if an investigative consumer report was obtained and employment was denied without the required advice. If Defendants establish that the product was an ordinary consumer credit report and not investigative, this count does not apply and the CCRAA count does.

64. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof of gross negligence or willfulness.

65. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3). He reserves amendment if production shows Best Buy based the decision in whole or in part on a consumer report and failed to provide a copy of the report and a federal rights summary before the adverse action. He also reserves amendment under Civil Code section 1786.16 if production shows the report was procured before the required standalone disclosure and written authorization. The October 17 confirmation recites authorization; it does not prove that a report was lawfully procured or used. Plaintiff does not

presently allege nonauthorization as an established fact.

VII.

SECOND CAUSE OF ACTION

California Consumer Credit Reporting Agencies Act
Civil Code sections 1785.20.5 and 1785.31 — Against Best Buy and User DOES
(Pleaded in the Alternative to ICRAA)

65A. Plaintiff realleges paragraphs 1 through 53 and 60 through 65 to the extent consistent with this cause.

65B. In the alternative, if the First Advantage product was an ordinary consumer credit report rather than an investigative consumer report, the California Consumer Credit Reporting Agencies Act applies. Civil Code section 1785.20.5 required Best Buy, before procuring a consumer credit report for employment purposes, to provide written notice that a report would be used, and, before taking adverse action based in whole or in part on the report, to provide a copy of the report and a notice of rights.

65C. The file contains no copy of any Best Buy consumer credit report and no rights notice before the ghosting. No such package arrived by email, portal, or mail. On information and belief, the decision was based in whole or in part on information in, produced by, or communicated through the First Advantage screening process.

65D. If the product was investigative, this count does not apply and the ICRAA count does. If it was an ordinary consumer credit report, the failure to furnish the report and rights notice before adverse action violated section 1785.20.5.

65E. Under Civil Code section 1785.31, Plaintiff seeks actual damages, costs, attorney's fees if later represented, and punitive damages upon proof of willfulness, according to proof.

VIII.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices

Business and Professions Code section 17200 — Against All Defendants

66. Plaintiff realleges paragraphs 1 through 65E to the extent consistent with this equitable cause.

67. Defendants engaged in unlawful practices by violating, to the extent proven, Civil Code section 1786.40, Civil Code section 1785.20.5, and Penal Code section 290.46(j)(2)(E). They engaged in unfair practices because the gravity of the harm — collapse of a written warehouse offer on a criterion the Legislature has forbidden, or on a consumer report without the advice the statute required — outweighs any utility of undoing the hire on secret registry-derived information without a source, a report, or an opportunity to respond.

68. Plaintiff suffered injury in fact and lost money or property through the lost warehouse employment at $22.60 per hour, the compelled disclosure of personal identifying information for screening, and other economic losses to be proven. Injury in fact sufficient for UCL standing is not the same as recoverable restitution. He does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired through the challenged practices — including, according to proof, the value of personal information he was compelled to disclose. He does not allege that Best Buy holds a fund of unearned future wages.

69. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data. On information and belief, Best Buy continues to use the same or similar standardized screening procedures for California warehouse applicants. That continuing practice is the basis for UCL injunctive relief and for declaratory relief under Code of Civil Procedure section 1060. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information in California warehouse hiring; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data, together with restitution of vested money or property actually acquired, under Business and Professions Code section 17203.

IX.

FOURTH CAUSE OF ACTION

Unauthorized Employment Use of Registry Information

Penal Code section 290.46(j) — Against All Defendants

54. Plaintiff realleges paragraphs 1 through 53, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

55. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law. Section 290.46(j)(2)(E) prohibits use of that information for purposes relating to employment unless another law authorizes the use.

56. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand

dollars ($25,000). The $25,000 figure is a cap on the civil penalty, not a substitute floor that displaces actual damages. Plaintiff seeks the civil remedies the statute authorizes for unauthorized employment use of information disclosed pursuant to section 290.46, whether this Court locates those remedies in subdivision (j)(4)(A) or in another subdivision of section 290.46. He does not rest this cause on a criminal-enhancement theory.

57. On information and belief, each element alleged in paragraph 52 is satisfied. Best Buy used information disclosed pursuant to section 290.46 concerning Plaintiff. The user is the employer that takes the information into account in making the employment decision, not a consumer reporting agency that merely retrieves, scores, or republishes it. First Advantage is not named as a defendant. This count is directed at Best Buy's use.

58. The use related directly to employment: it concerned the General Warehouse Worker / 2nd Shift offer or the later decision that ended or prevented that job. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to that warehouse assignment. Defendants knew or should have known that employment use was prohibited. The use was a substantial factor in the decision and caused the loss and injury alleged.

59. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), or by whichever subdivision this Court holds supplies the civil remedy for unauthorized employment use. He does not presently allege a multi-incident pattern or practice at Best Buy sufficient for subdivision (j)(4)(B) preventive relief. He seeks that remedy only if discovery shows reasonable cause to believe such a pattern or practice. The damages claim under subdivision (j)(4)(A) does not depend on pattern or practice. Civil Code section 3294 punitive damages, if any, are pleaded in the alternative to the statute's exemplary damages or civil penalty for the same conduct. Plaintiff will elect. He does not seek double punitive recovery.

59A. On information and belief, Best Buy's human-resources and centralized

employment-screening personnel are managing agents within the meaning of Civil Code section 3294(b): they exercise substantial discretionary authority over hiring and screening policy, not merely the power to accept or reject a single applicant. Those managing agents established, implemented, and ratified the standardized screening practices alleged. Plaintiff seeks section 3294 punitive damages only upon proof of oppression, fraud, or malice and of managing-agent authorization, ratification, or personal participation. ICRAA punitive damages, if any, rest on Civil Code section 1786.50 and do not depend on section 3294.

X.

PRESERVATION OF EVIDENCE

70. Defendants are on notice to preserve Plaintiff's complete Best Buy and BrassRing / Candidate Zone file for requisition 928556BR; the offer, acceptance audit, and disclosure PDFs; the background-check order, authorization, report, component searches, adjudication, access, and cancellation logs; the First Advantage file subject to Civil Code sections 1786.10 and 1786.22; the First Advantage drug-test order Q09078711 and result; communications of Tapia, Calvary, and Employment Screening; and policies governing Megan's Law, FCRA, ICRAA, and warehouse adjudication in 2023.

71. Relevant electronically stored information includes applicant-tracking and HRIS audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from October 1, 2023 through January 31, 2024, and any later date on which the employment decision was recorded or revisited.

72. The Best Buy First Advantage order, report, component searches, and adjudication logs are the documents that will confirm or refute registry use.

XI.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For CCRAA actual damages and punitive damages upon the showing required by Civil Code section 1785.31, if that alternative count is proven;

5. For punitive damages under Civil Code section 3294 against only those Defendants for whom the statutory prerequisites are proven, pleaded in the alternative to any exemplary damages or civil penalty awarded under Penal Code section 290.46 for the same conduct, with no double recovery and no amount pleaded;

6. For restitution under Business and Professions Code section 17203 of vested money or property Defendants acquired, not unearned future wages;

7. For injunctive relief under Business and Professions Code section 17203, and for Penal Code section 290.46(j)(4)(B) preventive relief only if discovery shows reasonable cause to believe a pattern or practice;

8. For declaratory relief under Code of Civil Procedure section 1060 concerning whether Defendants' standardized California screening practices may use information disclosed pursuant to Penal Code section 290.46 for employment;

9. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

10. For prejudgment and post-judgment interest as allowed by law; and

11. For such other relief as the Court deems just and proper.

XII.

DEMAND FOR JURY TRIAL

73. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

VERIFICATION

I, BRENDAN NGWA NFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Signed on September 8, 2026, at Milpitas, California.



BRENDAN NGWA NFORBI